IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,033
Filing Date:	March 7, 2026
Confirmation Number:	9442
Art Unit / Examiner:	TC 2100 / ANDREA BENNETT
Customer Number:	226458
Entity Status:	Small Entity (37 CFR § 1.27)
Title of Invention:	ACTIVE OPTICAL DATA CABLE SYSTEM WITH INTEGRATED PROCESSING UNIT

APPLICANT'S RESPONSE TO NOTICE TO FILE MISSING PARTS

PETITION FOR EXTENSION OF TIME (37 CFR § 1.136(a)), CONDITIONAL REQUEST FOR SUSPENSION UNDER 37 CFR § 1.103(a), SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION (37 CFR § 1.125), REPLACEMENT CLAIMS (37 CFR § 1.75(h)), REPLACEMENT ABSTRACT (37 CFR § 1.72(b)), STANDALONE DRAWINGS (37 CFR § 1.84), PERFECTED INVENTOR DECLARATION (37 CFR § 1.63), AND REQUEST FOR STATUTORY ALLOCATION OF UNAPPLIED DEPOSIT FUNDS (37 CFR § 1.22(b))

Mail Stop Missing Parts

Commissioner for Patents

P.O. Box 1450

Alexandria, VA 22313-1450

Applicant respectfully submits this comprehensive response to the Notice to File Missing Parts mailed August 18, 2026, setting a two-month period for reply.

I. Reaffirmation of Small Entity Status (37 CFR § 1.27)

Applicant hereby formally reaffirms entitlement to Small Entity status under 37 CFR § 1.27. Applicant is the sole inventor, has not assigned or licensed any rights in this application to any non-small entity, and meets all criteria under 35 U.S.C. § 41(h)(1). Small Entity status was perfected and verified on the official Filing Receipt dated August 18, 2026. All statutory fees are governed exclusively by the Small Entity fee schedule.

II. Resolution of Formalities Deficiencies and Instrument Itemization

To resolve all cited and structural pre-examination defects, Applicant concurrently submits an integrated nine-document filing envelope:

1. **Transmittal Response (Document 01):** This omnibus instrument.
2. **Petition for Extension of Time (Document 02):** Protective petition under 37 CFR § 1.136(a) verifying timeliness within the initial two-month statutory window pursuant to 35 U.S.C. § 21(b) and 37 CFR § 1.7.
3. **Conditional Request for Suspension (Document 03):** Request for a six-month suspension under 37 CFR § 1.103(a) effective upon pre-examination clearance, citing

pending federal litigation in the Southern District of Texas.

4. **AIA Inventor Declaration (Document 04):** Perfected declaration under 37 CFR § 1.63 containing all statutory averments and dual street addresses.

5. **Clean Substitute Specification (Document 05):** Text-only disclosure complying with 37 CFR § 1.52 and 37 CFR § 1.125(c).

6. **Marked-Up Copy of Specification (Document 06):** Showing excised non-specification sections and license deletion pursuant to 37 CFR § 1.125(c).

7. **Formal Standalone Drawings (Document 07):** Replacement drawing sheets 1 through 3 pursuant to 37 CFR § 1.84.

8. **Standalone Replacement Claims (Document 08):** Claims 1 through 10 starting on a separate sheet pursuant to 37 CFR § 1.75(h).

9. **Standalone Replacement Abstract (Document 09):** Single paragraph abstract commencing on a separate sheet pursuant to 37 CFR § 1.72(b).

Substitute Specification and 37 CFR § 1.125(b) Certification

Applicant concurrently files a Substitute Specification, including a clean copy and a marked-up copy pursuant to 37 CFR § 1.125(c). The sole purposes of this substitution are:

1. To excise embedded drawings to standalone formal sheets (37 CFR § 1.58(a));

2. To segregate the claims and abstract to separate sheets (37 CFR §§ 1.72(b), 1.75(h)); and

3. To delete the paragraph titled "Statement of License Grant to the United States Government" in its entirety to preserve Applicant's Small Entity status under 37 CFR § 1.27.

Applicant hereby certifies that the technical disclosure remains invariant and that these procedural changes introduce no new matter into the application.

III. Statutory Fee Reconciliation and Waterfall Allocation

Under the Notice to File Missing Parts mailed August 18, 2026, the gross Small Entity fees are $730.00 (Basic Filing Fee $70.00, Search Fee $308.00, Examination Fee $352.00). The Notice explicitly credits $330.00 in previously remitted unapplied deposit funds, leaving an assessed balance of $400.00.

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant directs the Office to allocate the $330.00 unapplied deposit funds in the following strict waterfall priority: $308.00 to fully satisfy the Utility Search Fee (Fee Code 2111). Concurrently herewith, Applicant remits the remaining balance by card at Patent Center checkout, together with $60.00 for the conditional suspension processing fee under 37 CFR § 1.17(i) (Fee Code 2830). As the two-month deadline of October 18, 2026 falls on a Sunday, it rolls by operation of law under 35 U.S.C. § 21(b) and 37 CFR § 1.7 to Monday, October 19, 2026; hence this filing on October 18, 2026 is timely without extension.

IV. Conclusion

Applicant respectfully requests that the Office: (1) accept this response as timely filed; (2) enter the Substitute Specification, Standalone Replacement Claims, Replacement Abstract, Standalone Drawings, and AIA Inventor Declaration; (3) grant the conditional request for suspension of action under 37 CFR § 1.103(a); and (4) deem all statutory pre-examination

fees settled and advance the application to substantive examination upon expiration of suspension.

Respectfully submitted,

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